

counties containing a population of fifteen thousand or more (according to the census of eighteen hundred and sixty), there shall be elected at the next general election, by the qualified voters of such counties, a separate clerk for the circuit court, who shall hold his office for the term of four years, and receive the same compensation as now allowed by law to the clerks of circuit courts: provided, that after the expiration of the first term of four years, all elections for clerks of circuit courts shall be in accordance with the next preceding census.*

County surveyors; how elected by the people; how appointed by county judge.

8. There shall be elected by the qualified voters of each county of this commonwealth, on the first Tuesday after the first Monday in November, eighteen hundred and seventy, and every three years thereafter, a county surveyor, who shall be the county surveyor for said county. He shall enter upon the discharge of the duties of his office on the first day of January next after his election, and shall hold his office until his successor is elected and qualified; and his duties, liabilities and compensation, shall in all other respects be the same as now provided for by existing laws relating to the office of county surveyor: provided, that the judge of the county court is hereby authorized to appoint a surveyor for each county in which he holds his court, who shall hold his office for the term prescribed by law, and until his successor is elected and qualified: and provided further, that said judge shall in like manner have power to fill a vacancy in the office of surveyor in each county in which he holds his court, whenever such vacancy shall occur, and the surveyor so appointed, shall continue in office until his successor is elected and qualified.

1869-70, c. 178,
§ 41, p. 265;
1871-2, c. 170,
§ 42, p. 230.

ELECTIONS FOR TOWNSHIP OFFICERS.

Supervisors, assessors, township clerks, collectors, commissioners of roads, and overseers of the poor.

9. In each township of the commonwealth there shall be chosen by the qualified voters of the townships respectively, at the general election to be held in May of the year one thousand eight hundred and seventy, and annually thereafter, one supervisor, one assessor, one township clerk, one collector, one commissioner of roads,† and one overseer of the poor, who shall hold their offices for the term of one year.

1869-70, c. 76,
§ 14, p. 80.

Overseers of roads; when elected, and how to qualify; their bonds.

10. There shall be elected annually in each road district of the several townships in this state, at such time as may be designated by the township board, but not later than the fourth Saturday in May, one overseer of roads, who shall be a resident of the road district in

1869-70, c. 441,
§ 4, p. 598, 597.

* This section is made up from the act of 1869-70, c. 76, § 13, p. 70; from the act of 1870-71, c. 112, p. 160, and from the act of 1869-70, c. 429, p. 578.

† Commissioner of roads ineligible to various offices. See post., § 13, Acts 1869-70, c. 441, § 4, p. 597.

Sec.		Sec.	
	other mills charged; penalty on assessor, &c.	70.	Omitted taxes, how assessed.
14.	Assessor's or commissioner's oath to land book.	71.	Penalties on assessors or commissioners for false or erroneous entries.
45.	Listing personal property.	72.	Assessor's and commissioner's oath to property book.
46.	What personal property is exempt from taxation.	73.	Property books and copies thereof, how disposed of.
47.	Construction of the revenue laws.	76.	When copies to be furnished clerk for examination; when to be furnished county or city treasurer and auditor; penalty for failure; receipts therefor.
48.	When assessors and commissioners begin to assess property; how beginners in business assessed; persons taxed to furnish list of property on oath; penalty on officer failing to administer oath.	77.	Fees of assessors and commissioners.
49.	What persons and personal property to be listed for taxation; who to list the same, when and how; clerks to furnish assessors, &c., with statement of bonds and funds held by receivers and commissioners of courts.	80.	Fees; tickets how made out and collected.
50.	Levy or distress for taxes on personal property.	81.	Assessors' or commissioners' compensation other than fees; post-aud.
51.	Property of assessor or commissioner, how assessed.	82.	When compensation suspended.
52.	When forms shall be furnished to taxpayers; then oaths, who may administer the oath.	83.	Compensation for services, omitted by predecessors; when he dies, how pay apportioned.
53.	Value assessed by owner or assessor; assessment for school by arbitration.	84.	Redress against erroneous assessment.
54.	Penalties for failing to comply with this chapter.	85.	Supersedeas authorized.
55.	Personal property book, how made out and what to contain.	91.	Offences against the revenue laws, how prosecuted; charge to grand juries.
56.	Schedule A—Persons.	92.	Mode of recovering fines.
57.	Schedule B—Personal estate.	93.	Railroad and canal companies to report annually the estimated value of their real and personal property; how tax thereon collected and accounted for.
58.	Schedule C—On personal property in choses in action, moneys, credits and capital on toll bridges and ferries; on dividends and interest, discounts, guaranties and assurances; penalty.	94.	Annual report for taxation of express and transportation, steamship, steamboat and stage companies, and persons running stages, wagons and other vehicles, for transportation of passengers; and of ferries, ferry and landing companies; other regulations relative to express companies; to be licensed.
59.	Assessment on bank stock; report to auditor.	95.	Report for taxation of insurance companies, when to be made and what to contain; penalty on company; assessor, &c., to report such companies to auditor.
60.	Schedule D—On incomes, false lists; penalty and proceedings.	96.	Report for taxation of foreign insurance companies; penalty for failure.
61.	Land and property books; pages to be aggregated and sum of revenue shown.	97.	Report for taxation of telegraph companies, when to be made; tax, how collected; penalty for failure.
62.	Deductions for failure to extend proper tax.	100.	Tax, when companies do more than one business.
63.	Books for former years which were not made, how made thereafter.		
64.	Assessors' books to contain columns for taxes for public free schools.		

Assessors and commissioners of revenue, how chosen.

1. In each township of the commonwealth there shall be chosen by the qualified voters of the townships respectively, at the general election to be held in May, annually, one assessor; and in like manner, and at the same time, there shall be chosen for each city and town containing a population of five thousand inhabitants, one commissioner of the revenue.

Their term of office; when to commence and terminate; their residence.

2. The term of office of the assessor shall be for one year, and of the commissioner of the revenue for two years, and the term of each of them shall commence on the first day of July next after their election, and they shall continue to discharge the duties of their respective offices, after their terms expire, until their successors shall have qualified, unless they shall have been sooner removed. Each assessor and commissioner shall reside in the township, city or town for which he was elected, and his removal therefrom shall vacate his office.

1869-70, c. 76, § 14, p. 80.
Id., § 14, and 17.
1871-2, c. 139, § 2, p. 149.
Id., § 1.
Id., § 20, p. 81.

1871-2, c. 139, § 2, p. 149.